ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	127th Commission Meeting
DATE:	10 May 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSION	DECISIONS
1.	Regular HR update – HRS *The HRS apprised the following decisions of 97th HRC meeting held on 9 May 2023:* • *Vacancies announced for Chiefs and other positions on lateral transfer and consolidated contract.* • *Recommendation of four staff for meritorious promotion for July 2023 as shortlisted by the respective Departments/ Divisions, of the five who meet eligibility criteria.* • *Appointment of Phuntsho Namgay as the Head of the DARe.* • *Recommendation to recruit Chief for DARe and PPD.* • *Nominations for training on R-*	**Noting the decisions of the HRC, the Commission further advised the following:** • **Directed HRS to keep the applicants informed of the probability of them being deployed in the Regional Offices.** • **The Commission noted that the HRC has endorsed all four candidates proposed by the respective Department/Divisions for the meritorious promotion. In this regard, while the Commission acknowledged their performance ratings, given the RCSC's scrutiny on the candidates to demonstrate exceptional performance beyond 'outstanding' rating for the three consecutive years, the Commission expected the HRC to add value to review and recommendation process with rigorous screening and assessment of their delivery, drive, and direction. Therefore, the Commission directed the HRC to revisit its recommendations**

	programming. • *Information on the procedure for HR travel management as per the notification of DTA.*	**stringently for the out of turn promotion by prioritizing two candidates. It was directed that such prioritized recommendation to the RCSC should not leave room for negotiation.** • **With regards to the recommendation to recruit Chiefs in DARe and PPD, the Commission noted the concerns. However, Commission discussed and decided to revisit DARe's recommendation after carefully studying the pros and cons in view of its nature of job.** • **The Commission directed to revisit nomination of a staff for R-programing who have tendered resignation.** • **In adhering to the eDATS notification, the Commission directed HRS to be mindful in managing information related to cases in the system by only sharing case number or just mentioning such to be for investigative purpose.** **Further, with regards to recommendations of the CPIB delegation based on the review of investigation processes and procedures, the Commission directed DoI and PPD to review the feedbacks and propose necessary interventions in investigation processes as well as enhanced performance management by the latter.**
2.	Present revised IEC for IVS – ED, DoPE *As a follow-up of 125th Commission meeting, the IEC on IVS was revised to include application of restorative justice on the IVR.*	**The Commission endorsed the revised IEC on IVS which includes information related to application of restorative justice policy based on good or repeated conducts.**
3.	Present knowledge sharing proposal – ED, DoPE *The detailed proposal to enhance*	**The Commission directed ED to start implementing the proposal of sharing/transferring knowledge through various**

	knowledge sharing was presented. The Commission commended ED's innovative proposal to share knowledge through DAMTSI dialogue at various levels, within the ACC as well as reaching out to the external stakeholders. The proposal is attached as Annex I.	**forums/platforms. Further the Commission directed to include the following:** • **In general, the initiative should look into "knowledge management" which not only includes sharing of knowledge but also enhances stimulation of cross-departmental collaboration to capture, organize and use knowledge to improve technical contents of advocacy programs but also build narratives on untold investigative stories/experiences of ACC. For instance, information related to complaints and cases completed will help in building knowledge bank which will in turn be useful in continual improvement of educational resources. Given the experiences and strength of ED, the division was advised to look into mobilizing expertise and lessons from DoI by engaging the investigators in post-investigation workshop to get their detailed insights. In this regard, ED was directed to collaborate with DARe, PD, and PPD, besides DoI.** • **In addition to informing general public using websites and in-person sessions, ED was also directed to maximize the use and engagement of diverse audiences through social media.**
4.	Present AD compliance status – ADMD, DoPE *The AD compliance statistics for the income year 2022 along with an update on action taken report (ATR) for 2021 was presented as per Annex II. The Commission noted that despite several notifications, the AD compliance as of date, for the income year 2022 has dropped to 92.9%.*	**The Commission decided to take following actions:** • **The details of non-compliance to penalty provisions by late declarants of both Schedule I and II to be shared with RAA.** • **Before taking legal recourse on the non-compliance to penalty provision by the non-declarants, the Commission decided to serve a Show Cause Notice to the Heads of five agencies, namely MoHA, Dagana Dzonkhag**

	With regards to ATR related to AD for income year 2021, the Commission noted that despite repeated follow-ups and reminders sent to individuals concerned, ADAs and Head of the Agencies (HOAs), actions have not been fully taken on the non and late-declarantions.	**Administration, Thimphu Thromde, BDBL, and BBSCL, informing them about their failure to impose penalties for Schedule II non-declarants of their respective agencies. ADMD was directed to make reference to all the follow-up letters and reminders sent to the HOAs and ask them to respond to the notice by mid of June 2023. In this regard, the ACC can take administrative action against the HOAs and legal action against the non-declarants in the last two weeks of June month.** • **The ADMD was also directed to plan sensitization on AD Rules for the HOAs to be initiated after end of June 2023.**
5.	Follow-up on release of seized properties related to case 09/2016 – EMD, DoPS *In continuation to the Commission's directive in the last meeting, EMD apprised that Lam Tshering Wangdi had sent representatives with Power of Attorney to take over the seized items/properties but had misplaced the seizure lists.* *Further, EMD apprised on the need to undertake maintenance of Lam's seized vehicle (land cruiser) before releasing. However, apprised on non-availability of budget for such maintenance.*	**The Commission directed the following:** • **As an interim measure, the expenditure of about Nu. 30,000/- for maintenance of the vehicle to be met from Endowment/SWS account as it is an emergency situation. Directed EMD to work out with Secretariat Services. The same to be reimbursed upon securing budget incorporation from MoF.** • **Before releasing the seized items based on the power of attorney, EMD with support of LD to confirm with Lam on the same.** • **LD to prepare a de-freeze notice related to the Lam's four lands.**
6.	Apprise on BDBL related cases – CFD, DoPS *As a preparation for a meeting with BDBL officials, the systemic issues which led to investigation of six*	**The Commission directed the CFD to further analyze all the 26 complaints and six cases investigated related to BDBL to not only highlight the systemic loopholes identified by the modus operandi but also highlight outcomes of**

	cases between 2016 and 2021, was presented. Further, a total of 26 complaints were received by the ACC against BDBL.	**cases investigated. CFD to prepare a chronological record of actions on complaints and cases to present comprehensive picture during the meeting with the BDBL.**
7.	Present proposal on UNCAC country visit – LD & PPD *The proposed program for the country visit for 2nd Cycle review of UNCAC implementation from 6-8 June was apprised as per Annex III.*	**The Commission directed the following to the LD and PPD:** • **To engage all the national agency focal points for the entire three days programs as opposed to UNDOC's proposal to have separate sessions for different groups. Further, directed to schedule the proposed session with the CSOs for the reviewers. However, directed to have early closing on the last day to give them opportunity to also see our country and culture.** • **Conduct preparatory meeting with the national agency focal points on 30th May 2023.** • **Seek SDF waivers for all the reviewers.** • **Arrange a dinner on the 2nd day of the meeting for the reviewers and all the participating focal points, upon reviewing availability of budget. Further, the costs for hall charges and meeting lunch to be met by the ACC.** • **Representatives from DoPE, DoPS, LD and PPD were directed to participate in the review from the ACC.** • **Find out about the local transportation from the UNODC.**

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Commissioner **Commissioner** **Chairperson**

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